

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Purchased:

SUMMONS

-----X
CLARENCE GRANTHAM,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

The basis of venue is:
Place of Occurrence

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, and POLICE OFFICER
DAVID GRIECO, and "JOHN DOES" 1 through 5,
Officers of the New York City Police Department,

Plaintiff resides at:
245 Worthman Avenue
Brooklyn, New York 11214

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
July 9, 2018


FABIEN ROBLEY, ESQ.
FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiff(s)
16 Court Street, Suite 2600
Brooklyn, New York 11241
(718) 797-2488

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

OFFICER DAVID GRIECO
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
CLARENCE GRANTHAM,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, and POLICE OFFICER
DAVID GRIECO, and "JOHN DOES" 1 through 5,
Officers of the New York City Police Department,Defendants.
-----X

Plaintiff by his attorneys, FRIEDMAN SANCHEZ, LLP, complaining of the defendants
above named respectfully alleges the following:

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the
County of Kings, City and State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant,
THE CITY OF NEW YORK, is a domestic municipal corporation.
3. Plaintiff has complied with all the conditions precedent to the bringing of this
action, and has complied with the provisions of the statute in such cases made and provided, and
in particular, has presented the claims hereinafter set forth to the Comptroller of The City of New
York for adjustment and more than thirty (30) days have elapsed since the presentation of said
claim, and said claim remains unadjusted, and said Comptroller has failed and refused to make
any adjustments of said claim, and the plaintiff has, prior to the bringing of this action, and
within ninety (90) days after the claim herein arose, duly served with the Comptroller of The City
of New York, of the intention to sue upon said claim hereinafter set forth.

4. That on October 18, 2017, a statutory hearing was held.

5. That THE CITY OF NEW YORK is vested with the power and authority to carry out municipal functions and in furtherance of said authority has created an entity known as the NEW YORK CITY POLICE DEPARTMENT.

6. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, operated and controlled a department known as THE NEW YORK CITY POLICE DEPARTMENT.

7. At all relevant times, THE CITY OF NEW YORK, acting through the NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision, implementation and conduct of all NEW YORK CITY POLICE DEPARTMENT matters and was responsible for the appointment, training, supervision, and conduct of all NEW YORK CITY POLICE DEPARTMENT personnel.

8. At all times relevant herein, THE CITY OF NEW YORK was responsible for ensuring that NEW YORK CITY POLICE DEPARTMENT personnel obey the laws of the United States and New York State.

9. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. Defendant THE CITY OF NEW YORK maintains the 075TH Precinct which is located at 1000 Sutter Avenue, Brooklyn, New York 11208.

11. Defendant THE CITY OF NEW YORK employed police officers for the purpose of law enforcement.

12. Defendant THE CITY OF NEW YORK is responsible for the practices, policies and

customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling, retaining and disciplining of the persons employed by the New York City Police Department.

13. At all times herein after mentioned, defendant DAVID GRIECO, was assigned to the 075TH Precinct.

14. At all times herein after mentioned, defendant DAVID GRIECO, was a Police Officer employed by the City of New York.

15. At all times herein after mentioned, defendant DAVID GRIECO, was a Police Officer employed by the New York City Police Department.

16. At all times herein after mentioned, defendants "John Does" 1 through 5 were assigned to the 075TH Precinct.

17. At all times hereinafter mentioned, defendants "John Does" 1 through 5 were police officers at the 075TH Precinct.

18. Defendant THE CITY OF NEW YORK is vicariously responsible for the actions of its police officers.

19. Defendant THE NEW YORK CITY POLICE DEPARTMENT is responsible for the actions of its police officers.

20. The 075TH Precinct is a precinct within the New York City Police Department and is located at 1000 Sutter Avenue, Brooklyn, New York 11208.

21. On May 10, 2017 defendant THE CITY OF NEW YORK employed officers "John Does" 1 through 5 who were assigned to the 075th Precinct.

22. On May 10, 2017 defendant THE CITY OF NEW YORK employed police officers

“John Does” 1 through 5 who were assigned to the 075th Precinct.

23. On May 10, 2017 the New York City Police Department employed the aforementioned police officers who were agents, servants and/or employees of the New York City Police Department.

24. On May 10, 2017 the New York City Police Department was responsible for the actions of the aforesaid police officers.

25. The individually named Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or City of New York and Defendants were also acting within the scope of and in furtherance of their employment.

26. At all times relevant herein, each of the individual Defendants acted under color of law in the course and scope of his or her duties and functions as an agent, employee, servant and/or officer of The City of New York and/or New York City Police Department in engaging in the conduct described herein.

27. At all times relevant herein, the individual Defendants have acted for and on behalf of The City of New York and/or The New York City Police Department, and incidental to the lawful pursuit of their duties as officers, agents, employees and/or servants of The City of New York and/or the New York City Police Department.

AS AND FOR A FIRST CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “27” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

29. On May 10, 2017 the plaintiff CLARANCE GRANTHAM was lawfully present at 226 Montauk Avenue, in the County of Kings, City and State of New York.

30. That at the aforesaid time and place, the defendant, THE CITY OF NEW YORK, by its agents, servants and employees forcible removed plaintiff CLARANCE GRANTHAM from the aforesaid premises.

31. That at the aforesaid time and place, the defendant, THE CITY OF NEW YORK, by its agents, servants and employees detained the person of plaintiff CLARANCE GRANTHAM and restrained the plaintiff.

32. In effecting the restraint and detention of the plaintiff CLARANCE GRANTHAM, the said defendants, their agents, servants and employees acted in concert.

33. The said detention and restraint of plaintiff CLARANCE GRANTHAM was committed by defendants, their agents, servants and employees without just cause or provocation, willfully, wantonly, maliciously, recklessly, without any fault whatsoever on the part of plaintiff, and contrary to law.

34. During the course of this arrest the plaintiff CLARANCE GRANTHAM was subjected to excessive use of force, assaulted, battered, handcuffed and otherwise attacked as a result of which plaintiff was caused to sustain and suffer serious personal injuries.

35. At the time of said restraint and detention the employees, servants and agents of the said defendants were acting within the scope of their authority and employment and their acts hereinbefore alleged were done in furtherance of the business of the defendants, and in the interests of the defendants.

36. Subsequent to the detention and restraint of plaintiff CLARANCE GRANTHAM

by the defendants, their agents and employees, plaintiff CLARANCE GRANTHAM was physically restrained and placed in handcuffs, and thereafter physically assaulted.

37. Solely by reason of the foregoing plaintiff was injured, became physically sick and disturbed and so remains, and sustained painful emotional distress and humiliation, mortification, shame, disgrace and mental pain, and incurred expense.

38. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

39. Plaintiff CLARANCE GRANTHAM repeats, reiterates and realleges each and every allegation contained in Paragraphs "1" through "38" inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

40. That on May 1-, 2017, plaintiff CLARANCE GRANTHAM was arrested by the said defendants, their agents, servants, and employees at the aforesaid location and was taken into the 075th Precinct located at 100 Sutter Avenue, Brooklyn, New York.

41. This arrest and continued detention was effectuated by defendants without probable cause and without any semblance of a lawful basis. Defendants at the time of this arrest and detention knew or should have known that the allegations, or any future allegations, as to plaintiff CLARANCE GRANTHAM would be false.

42. Throughout most of the aforesaid period plaintiff CLARANCE GRANTHAM was handcuffed and was never formally apprised of his rights, nor was he ever formally apprised of the charges against him.

43. In the precinct plaintiff CLARANCE GRANTHAM was subjected to physical and verbal abuse.

44. Plaintiff CLARANCE GRANTHAM was detained at a time that said defendants, their agents, servants and employees who arrested and imprisoned plaintiff, or caused the arrest and imprisonment of plaintiff, had actual knowledge of the fact that plaintiff had not committed any crimes, and knew that there was no lawful basis for his initial detention or for his continued detention.

45. The said arrest and imprisonment of plaintiff CLARANCE GRANTHAM by said defendants was a false arrest and an unjust imprisonment done without any warrant or pretense of legal process, maliciously and without any reasonable or probable cause therefor.

46. Solely by reason of the foregoing plaintiff CLARANCE GRANTHAM was deprived of his liberty, subjected to ridicule, scorn and derision by those knowing of his arrest and imprisonment, was deprived of the society and companionship of his family, and was otherwise greatly harmed and injured.

47. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

48. Plaintiff repeats each and every allegation contained in paragraphs "1" through "47" as if fully set forth herein.

49. The aforesaid officers of The City of New York and The New York City Police Department were acting as agents, servants and/or employees of The City of New York and the New York City Police Department.

50. The aforesaid officers were acting within the course and scope of their employment.

51. The aforementioned acts of each of the defendants were under color of statutes, ordinances, regulations, custom and usage of the State of New York and the City of New York.

52. The aforementioned acts of each of the defendants deprived plaintiff CLARANCE GRANTHAM of the privileges and immunities guaranteed to plaintiff as a citizen of the United States, by amendments IV, V, VII and Section I of amendment XIV of the Constitution of the United States and by the Constitution of the State of New York.

53. As a direct and proximate result of the defendants' actions, plaintiff CLARANCE GRANTHAM was deprived of rights, privileges and immunities secured to him under the Constitution and laws of New York and United States, including, but not limited to their rights under the Fourth, Eighth and Fourteenth Amendments of the United States Constitution and 42 U.S.C Section 1983.

54. The aforementioned acts of the defendants constituted cruel and unusual punishment of plaintiff CLARANCE GRANTHAM and as such violated amendment VIII of the Constitution of the United States and of the State of New York.

55. By reason of the foregoing, defendants are liable to plaintiff pursuant to Title 42 of the United States Code, including but not limited to Section 1983 thereof.

56. By reason of the aforementioned the plaintiff CLARANCE GRANTHAM suffered physical damages, suffered great mental anguish and was deprived of his constitutional rights.

57. That by reason of the foregoing, plaintiff CLARANCE GRANTHAM has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

58. Plaintiff CLARANCE GRANTHAM repeats each and every allegation contained in paragraphs “1” through “57” as if fully set forth herein.

59. All of the acts and omissions by the named and unnamed individual police officers described were carried out pursuant to overlapping policies and practices of The City of New York and the New York City Police Department which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of The City of New York and the New York City Police Department.

60. Defendant The City of New York and the New York City Police Department, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants’ wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

61. The actions of the individual police defendants resulted from and were taken pursuant to the following de facto policies and/or well settled and widespread customs and practices of The City of New York and the New York City Police Department, which were and are implemented by members of its police department:

- (a) Members of the Seventy Fifth precinct are encouraged and/or allowed by their supervisors to physically brutalize suspects and arrestees without consequence – i.e. without fear of reprimand, discipline or even re-training by the Department;
- (b) New York City Police Officers, including the Seventy Fifth precinct, engage in systemic and ubiquitous perjury, both oral and written, to cover-up constitutional and state law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They did so and do so with the knowledge and approval of their supervisors, commanders and Police Commissioners who all:

- (i) tacitly accept and encourage a code of silence wherein police officers refused to report other officers misconduct or tell false and incomplete stories designed to cover for and/or falsely exonerate accused police officers; and
 - (ii) encourage and/or fail to discipline officers for “testifying” and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil right violations perpetrated by themselves or fellow officers, supervisors and/or subordinates against those civilians; and
- (c) The City of New York and the New York City Police Department with the knowledge, approval and encouragement of Police Commissioners, fail to properly train, supervise and/or discipline officers concerning the constitutional rights of individuals in their care and custody.

62. The Defendants established a custom, policy and/or practice of encouraging, approving and/or tolerating the New York City Police Department’s use of excessive force and acts of misconduct against civilians, especially those civilians who are of African American descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

63. The Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilians of African American descent, and established a custom, policy and/or practicing of encouraging, approving and/or tolerating the use of said improper procedures by the New York City Police Department and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline its agents, employees and officers.

64. The defendants’ actions were undertaken under the color of law and would not have existed but for said defendants’ use of their official power.

65. The supervisors and policy making officers of defendants, as a matter of policy,

were deliberately indifferent to said practices and have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

66. Defendants have failed to properly or effectively train their agents, servants and/or employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failures continue to this day.

67. Defendants have sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of plaintiff and others similarly situated.

68. The Defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.

69. The City of New York and the New York City Police Department had a policy of encouraging abuse and assaults or of ratifying same by systemic deficiencies in disciplining officers or in the investigation of complaints against officers.

70. The foregoing acts, inaction, omissions and systemic failures are customs and policies of the municipal defendants and caused its police officers to believe that determination of the rights to use force and the amount of allowable legal force was within their discretion and that complaints of the use of excessive force would not be honestly or properly investigated, with the foreseeable result that officers would be likely to use improper force.

71. The existence of the foregoing unlawful de facto policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy making officers and officials of City of New York and the New York City Police

Department including its Police Commissioner.

72. Despite knowledge of such unlawful de facto policies, practices and/or customs, these supervisory and policy making officers and officials of The City of New York and the New York City Police Department including its Commissioner, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and insert sanctions and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or custom upon the constitutional rights of persons in their care and custody.

73. As a result of the aforesaid violation of Plaintiff's rights, he sustained injuries and damages previously described in this complaint.

74. As a result of the foregoing, plaintiff seeks compensatory damages in an amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

75. As a direct and proximate result of the aforesaid acts, inaction, omissions and systemic failures the individually named officers used excessive force against the plaintiff.

76. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

77. Plaintiff CLARANCE GRANTHAM repeats and incorporates by reference each and every allegation contained in paragraphs "1" through "76" as if fully set forth herein.

78. Members of the New York City Police Department have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the police department employing unjustified and excessive force against a civilian or an arrestee.

79. Other officers and employees of the defendant New York City Police Department were present while the plaintiff was being assaulted and battered.

80. The use of force against the plaintiff was obviously excessive and unjustified under the circumstances yet the other officers present failed to take any action or make any effort to intervene, halt or protect the plaintiff from being physically brutalized.

81. Defendants' violation of plaintiff's constitutional rights by failing to intervene in the clearly unconstitutional use of force against the plaintiff resulted in the injuries and damages set forth above.

82. That by reason of the foregoing, plaintiff CLARANCE GRANTHAM has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts

AS AND FOR A SIXTH CAUSE OF ACTION

83. Plaintiff CLARANCE GRANTHAM repeats each and every allegation contained in paragraphs "1" through "82" as if fully set forth herein.

84. The actions of the defendants in assaulting and battering the plaintiff CLARANCE GRANTHAM were outrageous and beyond any norms acceptable to society.

85. The actions of defendant DAVID GRIECO in assaulting and battering the plaintiff CLARENCE GRANTHAM were outrageous and beyond any norms acceptable to society.

86. Defendants acted with the desire and intent to cause plaintiff emotional distress, or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

87. Defendants acted with utter disregard of the consequences of their actions.

88. The actions of defendant DAVID GRIECO endangered the safety of the plaintiff.

89. The actions of defendant DAVID GRIECO caused plaintiff to be fear for his own safety.

90. As a result of the aforesaid, plaintiff sustained injuries and damages previously described in this complaint, including intentional infliction of emotional distress.

91. That by reason of the foregoing, plaintiff CLARANCE GRANTHAM has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

92. Plaintiff CLARANCE GRANTHAM repeats, reiterates and realleges each and every allegation contained in Paragraphs numbered "1" through "91" inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

93. The acts and omissions of these defendants set forth hereinabove with particularity were actuated by malice towards plaintiff CLARANCE GRANTHAM, and as a result of a wanton, reckless and willful disregard of plaintiff CLARANCE GRANTHAM's rights, sanctity, safety, and security. As a result thereof, plaintiff prays for an award of punitive damages against the said defendants.

AS AND FOR AN EIGHTH CAUSE OF ACTION

94. Plaintiff CLARANCE GRANTHAM repeats, reiterates, and realleges each and every allegation contained in Paragraphs numbered “1” through “93” of the complaint herein with the same force and effect as if fully set forth herein at length.

95. That at all times hereinafter mentioned, the defendants, their agents, servants, and employees were incompetent, dangerous, and vicious, of all of which the defendants had knowledge but that the said defendants wholly failed and neglected to take any steps whatsoever to protect individuals lawfully pursuing their business, and this plaintiff, from the aforesaid agents, servants and employees, and in otherwise being negligent in the premises.

AS AND FOR A NINTH CAUSE OF ACTION

96. Plaintiff CLARANCE GRANTHAM repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “95” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

97. That on May 10, 2017, plaintiff CLARANCE GRANTHAM was arrested by the said defendants, their agents, servants, and employees at the aforesaid location and was taken into the 075th Precinct located at 100 Sutter Avenue, Brooklyn, New York.

98. This arrest and continued detention was effectuated by defendants without probable cause and without any semblance of a lawful basis. Defendants at the time of this arrest and detention knew or should have known that the allegations, or any future allegations, as to plaintiff CLARANCE GRANTHAM would be false.

99. Subsequent thereto Plaintiff was taken to Central Booking where his detention was continued and defendants, their agents, servants, and/or employees and the individually named defendants.

100. Defendants, their agents, servants, and/or employees and the individually named defendants continued criminal proceedings and prosecution of plaintiff with knowledge that his arrest and continued detention were effectuated by defendants without probable cause and without any semblance of a lawful basis.

101. Defendants, their agents, servants, and/or employees and the individually named defendants continued criminal proceedings and prosecution of plaintiff with knowledge that his continued proceedings lacked any lawful basis.

102. Defendants, their agents, servants, and/or employees and the individually named defendants continued criminal proceedings and prosecution of plaintiff until the charges against plaintiff were dismissed.

103. Solely by reason of the foregoing plaintiff CLARANCE GRANTHAM was deprived of his liberty, subjected to ridicule, scorn and derision by those knowing of his arrest and imprisonment, was deprived of the society and companionship of his family, and was otherwise greatly harmed and injured.

104. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff demands judgment against the defendants, on each and every cause of action, in an amount which exceeds the jurisdictional limits of all lower Courts, all together with the costs and disbursements of this action.



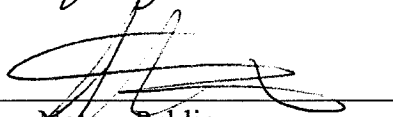
BY: FABIEN ROBLEY, ESQ.
FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiffs
16 Court Street, 26th Floor
Brooklyn, New York 11241
(718) 797-2488

VERIFICATION

STATE OF NEW YORK, COUNTY OF KINGS} ss:

CLARENCE GRANTHAM, being duly sworn, says:

I am Plaintiff in the action herein: I have read the annexed COMPLAINT know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.


CLARENCE GRANTHAMSworn to before me this
9th day of July, 2018
Notary PublicFABIEN ROBLEY
Notary Public, State of New York
No. 06909-10084
Qualified in Kings County
Commission Expires 10/10/2018

Index No.:
SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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DAVID GRIECO, and "JOHN DOES" 1 through 5,
Officers of the New York City Police Department,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

FRIEDMAN SANCHEZ, LLP

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TO: